

STATE OF NEW YORK

1863--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. ROSENTHAL, REYES -- read once and referred to the Committee on Aging -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the administrative code of the city of New York and the real property tax law, in relation to notice regarding the rent increase exemption for low income elderly persons and persons with disabilities programs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The administrative code of the city of New York is amended
2 by adding a new section 26-605.2 to read as follows:

3 § 26-605.2 Required notice. (a) A tenant residing in a dwelling unit
4 subject to the provisions of this chapter shall be furnished a notice
5 informing such tenant about the tenant's potential eligibility for a
6 rent increase exemption pursuant to this chapter and sections four
7 hundred sixty-seven-b and four hundred sixty-seven-c of the the real
8 property tax law. The form and content of such notice shall be promul-
9 gated as required by paragraph i of subdivision three of section four
10 hundred sixty-seven-b of the real property tax law.

11 (b) The notice required by subdivision (a) of this section shall be
12 furnished by the following agencies or individuals at the same time as
13 the notice required by the occurrence of the following events:

14 (1) The state commissioner of housing and community renewal shall
15 provide such notice to a tenant in the event of:

16 (i) Receipt of an application for a rent adjustment due to a major
17 capital improvement;

18 (ii) A rent increase pursuant to section thirty-one of the private
19 housing finance law;

20 (iii) Receipt of the annual certification required by section thirty-
21 one of the private housing finance law; and

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (iv) For dwelling units subject to chapter three of this title, a
2 maximum base rent adjustment pursuant to paragraph one of subdivision g
3 of section 26-405 of this title.

4 (2) The landlord of a dwelling unit shall provide such notice to a
5 tenant:

6 (i) With an initial lease and any renewal lease; and

7 (ii) Upon the annual registration of a housing accommodation as
8 required by section 26-517 of this title.

9 (c) When notice is furnished pursuant to paragraph one of subdivision
10 (b) of this section, such notice shall include specific information as
11 to the agency providing such notice.

12 § 2. Subparagraph 2 of paragraph i of subdivision 3 of section 467-b
13 of the real property tax law, as added by chapter 424 of the laws of
14 2015, is amended to read as follows:

15 (2) (A) a landlord of any housing accommodation subject to provisions
16 of the local emergency housing rent control act, the emergency tenant
17 protection act of nineteen seventy-four or any local laws enacted pursu-
18 ant thereto, the emergency housing rent control law or the rent stabili-
19 zation law of nineteen hundred sixty-nine shall, at least once annually,
20 including with a new lease and all renewal leases and upon the annual
21 registration of a housing accommodation as required by section 26-517 of
22 the administrative code of the city of New York delivered to the occu-
23 pant of such accommodation, provide the informational material describ-
24 ing eligibility for and the benefits of the senior citizen rent increase
25 exemption program and the disability rent increase exemption program, as
26 provided by the entity administering the program pursuant to subpara-
27 graph one of this paragraph.

28 (B) The notice required by clause (A) of this subparagraph shall be
29 furnished by the state commissioner of housing and community renewal to
30 a tenant at the same time as:

31 (i) Receipt of an application for a rent adjustment due to a major
32 capital improvement;

33 (ii) A rent increase pursuant to section thirty-one of the private
34 housing finance law;

35 (iii) Receipt of the annual certification required by section thirty-
36 one of the private housing finance law; and

37 (iv) For dwelling units subject to chapter three of title twenty-six
38 of the administrative code of the city of New York, a maximum base rent
39 adjustment pursuant to paragraph one of subdivision g of section 26-405
40 of the administrative code of the city of New York.

41 (C) When notice is furnished pursuant to clause (B) of this subpara-
42 graph, such notice shall include specific information as to the agency
43 providing such notice.

44 § 3. Subdivision 3 of section 467-c of the real property tax law is
45 amended by adding a new paragraph e to read as follows:

46 e. (1) Notwithstanding any provision of law to the contrary, a tenant
47 residing in a dwelling unit subject to the provisions of this section
48 shall be furnished a notice informing such tenant about the tenant's
49 potential eligibility for a rent increase exemption pursuant to this
50 section. The form and content of such notice shall be promulgated as
51 required by paragraph i of subdivision three of section four hundred
52 sixty-seven-b of this title.

53 (2) The notice required by subparagraph one of this paragraph shall be
54 furnished by the following agencies or individuals at the same time as
55 the notice required by the occurrence of the following events:

1 (A) The state commissioner of housing and community renewal shall
2 provide such notice to a tenant in the event of:

3 (i) Receipt of an application for a rent adjustment due to a major
4 capital improvement;

5 (ii) A rent increase pursuant to section thirty-one of the private
6 housing finance law;

7 (iii) Receipt of the annual certification required by section thirty-
8 one of the private housing finance law; and

9 (iv) For dwelling units subject to chapter three of title twenty-six
10 of the administrative code of the city of New York, a maximum base rent
11 adjustment pursuant to paragraph one of subdivision g of section 26-405
12 of the administrative code of the city of New York.

13 (B) The landlord of a dwelling unit shall provide such notice to a
14 tenant:

15 (i) With an initial lease and any renewal lease; and

16 (ii) Upon the annual registration of a housing accommodation as
17 required by section 26-517 of the administrative code of the city of New
18 York.

19 (3) When notice is furnished pursuant to clause (A) of subparagraph
20 two of this paragraph, such notice shall include specific information as
21 to the agency providing such notice.

22 § 4. This act shall take effect on the thirtieth day after it shall
23 have become a law. Effective immediately, the addition, amendment
24 and/or repeal of any rule or regulation necessary for the implementation
25 of this act on its effective date are authorized to be made and
26 completed on or before such effective date.